

TEXAS ADMINISTRATIVE CODE: As in effect on 8/23/2026.

TITLE 26. HEALTH AND HUMAN SERVICES

PART 1. HEALTH AND HUMAN SERVICES COMMISSION

CHAPTER 558. LICENSING STANDARDS FOR HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

SUBCHAPTER C. MINIMUM STANDARDS FOR ALL HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

DIVISION 3. AGENCY ADMINISTRATION

§558.241. Management.

(a) Agency policies. The license holder is responsible for the conduct of the agency and for the adoption, implementation, enforcement, and monitoring of adherence to the written policies required throughout this chapter. The license holder is also responsible for ensuring that the policies comply with the Statute and the applicable provisions of this chapter and are administered to provide safe, professional, quality health care.

(b) Criminal conviction. The persons described in §558.11(g) of this chapter (relating to Criteria and Eligibility for Licensing) must not have been convicted of an offense described in §560.2 of this title (relating to Convictions Barring Licensure), during the time frames described in that section.

(c) Documentation. The license holder must ensure that all documents submitted to HHSC, or maintained by the agency pursuant to this chapter, are accurate and do not misrepresent or conceal a material fact.

(d) Compliance with enforcement orders. The license holder must comply with an order of the HHSC executive commissioner or other enforcement orders that may be imposed on the agency in accordance with the Statute and this chapter.

Source Note: The provisions of this §558.241 adopted to be effective February 1, 2002, 26 TexReg 9159; amended to be effective June 1, 2006, 31 TexReg 1455; amended to be effective December 1, 2006, 31 TexReg 9620; amended to be

effective September 1, 2009, 34 TexReg 5139; transferred effective May 1, 2019, as published in the April 12, 2019, issue of the Texas Register, 44 TexReg 1893; amended to be effective April 25, 2021, 46 TexReg 2427.